

Court No. - 21

Case :- WRIT - C No. - 30219 of 2009

Petitioner :- Sri Satish Kumar Sharma

Respondent :- State Of U.P. & Others

Petitioner Counsel :- K.K. Arora

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla, Sunil Kumar Dubey

Hon'ble Dilip Gupta, J.

List this petition in the next cause list to enable learned counsel for the petitioner to file an affidavit indicating whether the order dated 19th June, 2009 has been complied with.

Order Date :- 23.10.2009

GS

Court No. - 21

Case :- WRIT - C No. - 30219 of 2009

Petitioner :- Sri Satish Kumar Sharma

Respondent :- State Of U.P. & Others

Petitioner Counsel :- K.K. Arora

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla, Sunil Kumar Dubey

Hon'ble Dilip Gupta, J.

As prayed for by learned counsel for the petitioner, list this petition in the next cause list.

Order Date :- 6.11.2009

NSC

Court No. - 34

Case :- WRIT - C No. - 30219 of 2009

Petitioner :- Sri Satish Kumar Sharma

Respondent :- State Of U.P. & Others

Counsel for Petitioner :- K.K. Arora

Counsel for Respondent :- C.S.C., Pankaj Kumar
Shukla, Sunil Kumar Dubey

Hon'ble Sudhir Agarwal, J.

As prayed, put up on 01.08.2014.

Order Date :- 30.7.2014

AK

Court No. - 34

Case :- WRIT - C No. - 30219 of 2009

Petitioner :- Sri Satish Kumar Sharma

Respondent :- State Of U.P. & Others

Counsel for Petitioner :- K.K. Arora

Counsel for Respondent :- C.S.C., Pankaj Kumar Shukla, Sunil Kumar Dubey

Hon'ble Sudhir Agarwal, J.

1. Heard learned counsel for parties and perused the record.
2. The respondents-Power Corporation Authorities claim to have made a checking at petitioner's premises on 3.1.2008 by Vigilance in which petitioner was allegedly found committing theft of electricity by directly connecting 7.5 Horse Power Submersible Pump, where to first information report was lodged and a sum of Rs. 16,000/- was also obtained from petitioner towards compounding on 15.2.2008. Prior thereto, a show cause notice/provisional assessment of Rs. 220554/- was issued on 18.1.2008 where against petitioner filed objection dated 12.2.2008. Thereafter final assessment order was passed on 25.2.2008 observing that petitioner's reply is totally unsatisfactory, making the aforesaid assessment final. Since a sum of Rs. 110280/- was already realized from petitioner, for balance sum of Rs. 110274/- recovery certificate under Section 3 of Uttar Pradesh Government Electrical Undertaking (Dues Recovery) Act, 1958 (hereinafter referred to as "Act, 1958") was issued on 17.4.2008. Thereafter petitioner came in appeal under Section 127 which has been rejected by Commissioner by order dated 18.5.2009.
3. Counsel for petitioner submitted that neither any appropriate show cause notice was issued to petitioner nor any speaking order of assessment has been passed and in a mechanical manner, impugned orders have been passed. He placed reliance on a Division Bench judgment of this Court in **Ashok Kumar and others Vs. State of U.P. and others 2008 (6) ADJ 660 (DB)** and said that the entire proceeding is in utter violation of the procedure as discussed and laid down therein and in the light of relevant provisions contained in Electricity Supply Code, 2005.
4. Learned counsel for respondents could not dispute that impugned

orders are not consistent to the law laid down in **Ashok Kumar (Supra)**.

5. In view thereof, the writ petition is allowed. Impugned orders dated 25.2.2008 and 18.5.2009 are hereby quashed. Matter is remanded to the Assessing Authority concerned to pass a fresh order in accordance with law and in the light of law laid down in **Ashok Kumar (supra)**.

Dt. 01.08.2014

PS